

Judgment Sheet

**LAHORE HIGH COURT/APPELLATE TRIBUNAL
RAWALPINDI BENCH RAWALPINDI
JUDICIAL DEPARTMENT**

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ELECTION APPEAL NO.147 of 2024

AZEEM BAKHASH CHAUDHARY

Versus

**RETURNING OFFICER, CONSTITUENCY PP-19 MURREE AND
KOTLI SATTIAN and another**

JUDGMENT

Date of hearing:	<u>09.01.2024</u>
Appellant by:	Mr. Azmat Ali Abbasi, Advocate.
Respondents by:	Mr. Muhammad Siddique Awan, Additional Attorney General for Pakistan with Zulqarnain Hyder Gondal, Assistant Director (Law), Election Commission of Pakistan and M. Asif Jabbar, Assistant Returning Officer, PP-19 and Sajeel Ahmed, Assistant Director Europe Ministry of Foreign Affairs.

MIRZA VIQAS RAUF, J. This appeal under Section 63 of the Elections Act, 2017 (hereinafter referred to as “Act, 2017”) arises out of order dated 30th December, 2023, whereby the Returning Officer PP-19 Rawalpindi-XIII (hereinafter referred to as “R.O.”) proceeded to reject the nomination paper of the appellant on the ground that he is having dual nationality.

2. Heard. Record perused.

3. Chapter V of the “Act, 2017” provides the procedure for conduct of elections to the assemblies. Any voter of a constituency, may propose or second the name of any qualified person to be a

candidate for Member for that constituency by virtue of Section 60 of the “Act, 2017”. In terms of sub-section (2) of Section 60 of the Act *ibid* every nomination shall be made by a separate nomination paper on Form A signed both by the proposer and the seconder and shall, on solemn affirmation made and signed by the candidate, be accompanied by a declaration that he has consented to the nomination and that he fulfils the qualifications specified in Article 62 of the Constitution of the Islamic Republic of Pakistan, 1973 (hereinafter referred to as “Constitution”) and is not subject to any of the disqualifications specified in Article 63 for being elected as a Member. Furthermore, a declaration that he has opened an exclusive account with a scheduled bank for the purpose of election expenses. Section 62 of the “Act, 2017” lays down the procedure for the scrutiny of nomination paper. Sub-section (2) of Section 62 of the “Act, 2017” ordains that the candidates, their election agents, the proposers and seconders and one other person authorized in this behalf by each candidate, and a voter who has filed an objection under sub-section (1), may attend the scrutiny of nomination papers, and the “R.O.” shall give them reasonable opportunity for examining all the nomination papers delivered to him under section 60. Sub-section (9) of Section 62 provides that the “R.O.” may, either of his own motion or upon an objection, conduct a summary enquiry and reject a nomination paper if he is satisfied that the candidate is not qualified to be elected as a Member.

4. The sole ground which prevailed upon the “R.O.” for disqualification of the nomination paper of the appellant is that he is having British citizenship as per information furnished by Federal Investigation Agency (FIA) and he did not provide any evidence for renunciation of his British citizenship. It appears that the “R.O.” proceeded to reject the nomination of the appellant on the basis of a report from Election Commission of Pakistan and affirmed by the Additional Director IBMS Federal Investigation Agency (FIA)

Islamabad that the appellant is holding nationality of United Kingdom under foreign passport No.DT3341262.

5. In order to examine the validity of the impugned order, it would be advantageous to first go through the relevant provisions of the “Constitution” prescribing qualifications and disqualifications for membership of Majlis-e-Shoora (Parliament). Articles 62 and 63 of the “Constitution” are, thus, reproduced below: -

62. (1) A person shall not be qualified to be elected or chosen as a member of Majlis-e-Shoora (Parliament) unless-

- (a) he is a citizen of Pakistan;
- (b) he is, in the case of the National Assembly, not less than twenty-five years of age and is enrolled as a voter in any electoral roll in –
 - (i) any part of Pakistan, for election to a general seat or a seat reserved for non-Muslims; and
 - (ii) any area in a Province from which she seeks membership for election to a seat reserved for women.
- (c) he is, in the case of Senate, not less than thirty years of age and is enrolled as a voter in any area in a Province or, as the case may be, the Federal Capital, from where he seeks membership;
- (d) he is of good character and is not commonly known as one who violates Islamic Injunctions;
- (e) he has adequate knowledge of Islamic teachings and practices obligatory duties prescribed by Islam as well as abstains from major sins;
- (f) he is sagacious, righteous, non-profligate, honest and ameen, there being no declaration to the contrary by a court of law; and
- (g) he has not, after the establishment of Pakistan, worked against the integrity of the country or opposed the ideology of Pakistan.

(2) The disqualifications specified in paragraphs (d) and (e) shall not apply to a person who is a non-Muslim, but such a person shall have good moral reputation.

“63. (1) A person shall be disqualified from being elected or chosen as, and from being, a member of the Majlis-e-Shoora (Parliament), if—

- (a) he is of unsound mind and has been so declared by a competent court; or
- (b) he is an undischarged insolvent; or
- (c) he ceases to be a citizen of Pakistan, or acquires the citizenship of a foreign State; or
- (d) he holds an office of profit in the service of Pakistan other than an office declared by law not to disqualify its holder; or
- (e) he is in the service of any statutory body or any body which is owned or controlled by the Government or in which the Government has a controlling share or interest; or
- (f) being a citizen of Pakistan by virtue of section 14B of the Pakistan Citizenship Act, 1951 (II of 1951), he is for the time being disqualified under any law in force in Azad Jammu and Kashmir from being elected as a member of the Legislative Assembly of Azad Jammu and Kashmir; or
- (g) he has been convicted by a court of competent jurisdiction for propagating any opinion, or acting in any manner, prejudicial to the ideology of Pakistan, or the sovereignty, integrity or security of Pakistan, or the integrity, or independence of the judiciary of Pakistan, or which defames or brings into ridicule the judiciary or the Armed Forces of Pakistan, unless a period of five years has lapsed since his release; or
- (h) he has been, on conviction for any offence involving moral turpitude, sentenced to imprisonment for a term of not less than two years, unless a period of five years has elapsed since his release; or
- (i) he has been dismissed from the service of Pakistan or service of a corporation or office set up or, controlled by the Federal Government, Provincial Government or a Local Government on the grounds of misconduct, unless a period of five years has elapsed since his dismissal; or
- (j) he has been removed or compulsorily retired from the service of Pakistan or service of a corporation or office set up or controlled by the Federal Government, Provincial Government or a Local Government on the grounds of misconduct, unless a period of three years has elapsed since his removal or compulsory retirement; or
- (k) he has been in the service of Pakistan or of any statutory body or any body which is owned or controlled by the Government or in which the Government has a

controlling share or interest, unless a period of two years has elapsed since he ceased to be in such service; or

- (l) he, whether by himself or by any person or body of persons in trust for him or for his benefit or on his account or as a member of a Hindu undivided family, has any share or interest in a contract, not being a contract between a cooperative society and Government, for the supply of goods to, or for the execution of any contract or for the performance of any service undertaken by, Government:

Provided that the disqualification under this paragraph shall not apply to a person—

- (i) where the share or interest in the contract devolves on him by inheritance or succession or as a legatee, executor or administrator, until the expiration of six months after it has so devolved on him;
- (ii) where the contract has been entered into by or on behalf of a public company as defined in the Companies Ordinance, 1984 (XLVII of 1984), of which he is a shareholder but is not a director holding an office of profit under the company; or
- (iii) where he is a member of a Hindu undivided family and the contract has been entered into by any other member of that family in the course of carrying on a separate business in which he has no share or interest; or

Explanation.—In this Article “goods” does not include agricultural produce or commodity grown or produced by him or such goods as he is, under any directive of Government or any law for the time being in force, under a duty or obligation to supply; or

- (m) he holds any office of profit in the service of Pakistan other than the following offices, namely :—
 - (i) an office which is not whole time office remunerated either by salary or by fee;
 - (ii) the office of Lumbardar, whether called by this or any other title;
 - (iii) the Qaumi Razakars;
 - (iv) any office the holder whereof, by virtue of such office, is liable to be called up for military training or military service under any law providing for the constitution or raising of a Force; or
- (n) he has obtained a loan for an amount of two million rupees or more, from any bank, financial institution, cooperative society or cooperative body in his own name or in the name of his spouse or any of his dependents, which remains unpaid for more than one year from the due date, or has got such loan written off; or

- (o) he or his spouse or any of his dependents has defaulted in payment of government dues and utility expenses, including telephone, electricity, gas and water charges in excess of ten thousand rupees, for over six months, at the time of filing his nomination papers; or
- (p) he is for the time being disqualified from being elected or chosen as a member of the Majlis-e-Shoora (Parliament) or of a Provincial Assembly under any law for the time being in force.

Explanation.— For the purposes of this paragraph “law” shall not include an Ordinance promulgated under Article 89 or Article 128.

(2) If any question arises whether a member of the Majlis-e-Shoora (Parliament) has become disqualified from being a member, the Speaker or, as the case may be, the Chairman shall, unless he decides that no such question has arisen, refer the question to the Election Commission within thirty days and if he fails to do so within the aforesaid period it shall be deemed to have been referred to the Election Commission.

(3) The Election Commission shall decide the question within ninety days from its receipt or deemed to have been received and if it is of the opinion that the member has become disqualified, he shall cease to be a member and his seat shall become vacant.”

It is thus manifestly clear that one of the qualifications for a person to be chosen as member of Majlis-e-Shoora (Parliament) is that he should be a citizen of Pakistan.

6. In terms of sub-clause (1)(c) of Article 63 of the “Constitution” a person shall be disqualified from being elected or chosen as, and from being, a member of the Majlis-e-Shoora (Parliament), if he ceases to be a citizen of Pakistan, or acquires the citizenship of a foreign State. Article 63 of the “Constitution, thus, provides two eventualities resulting into disqualification of a person to be elected as Member of Majlis-e-Shoora (Parliament), firstly if he ceases to be citizen of Pakistan and secondly in case he acquires the citizenship of a foreign state. The question of interpretation of Article 63(1)(c) of the “Constitution” came under discussion before the Supreme Court of Pakistan in the case of Syed MEHMOOD AKHTAR NAQVI v. FEDERATION OF PAKISTAN through Secretary Law and others (PLD 2012 Supreme Court 1089) and it was held as under: -

“42. We have carefully scanned Article 63 of the Constitution and from a bare perusal of it, it appears that the Legislature before the word 'or' put a comma which manifests the intention of Legislature that "ceases to be a citizen of Pakistan to be read separately from “holding of citizenship of foreign State” and word ‘or’ cannot be read as ‘and’

Does Article 63(1)(c) relate to post election disqualification only.”

7. Section 14 of the Pakistan Citizenship Act, 1951 would further elaborate the proposition as it places an embargo on dual citizenship and reads as under :-

“14. DUAL CITIZENSHIP OR NATIONALITY NOT PERMITTED.— (1) Subject to the provisions of this section if any person is a citizen of Pakistan under the provisions of this Act, and is at the same time a citizen or national of any other country he shall, unless he makes a declaration according to the laws of that other country renouncing his status as citizen or national thereof, cease to be a citizen of Pakistan.

(IA) Nothing in sub-section (1) applies to a person who has not attained twenty-one years of his age:

(2) Nothing in sub-section (1) shall apply to any person who is a subject of an Acceding State so far as concerns his being a subject of that State.

(3) Nothing in sub-section (1) shall apply, or shall be deemed ever to have applied at any stage, to a person who being, or having at any time been, a citizen of Pakistan, is also the citizen of the United Kingdom and Colonies or of such other country as the Federal Government may, by notification in the official Gazette, specify in this behalf.

(4) Nothing in sub-section (1) shall apply to a female citizen of Pakistan who is married to a person who is not a citizen of Pakistan.”

Sub-section (3) of Section 14 was inserted by the Act No.XVII of 1972. Since it is the ground for the rejection of nomination paper of the appellant that he was having the nationality of United Kingdom, so this matter would come under sub-section (3). In order to avoid the disqualification enumerated under Article 63(1)(c) of the “Constitution” the appellant being the citizen of United Kingdom has to renunciate nationality of said country.

8. In the case reported as SUO MOTU CASE NO.8 OF 2018 AND CIVIL MISC. APPLICATION NO.649-L OF 2018 (PLD 2019 Supreme Court 201) Supreme court of Pakistan while dealing with the issue akin to the

issue at hand held as under :-

“22. Various notifications have been issued under Section 14(3) of the Act of 1951, to extend the privilege of dual nationality to persons acquiring citizenship of, inter alia, United States of America and Canada in addition to the United Kingdom countries relevant for the adjudication of the lis at hand.

23. Currently, a person can be a citizen of Pakistan as well as a citizen of, inter alia, United Kingdom, United States of America and Canada without ceasing to be a citizen of Pakistan. It is in the above context, that the provisions of Article 63(1)(c) of the Constitution, must necessarily be interpreted. Where a citizen of Pakistan acquires the nationality of or is also a citizen of another country other than a country covered by the provisions of Section 14(3) of the Act of 1951, or the Notifications issued thereunder, permitting dual nationality, referred to above, he automatically ceases to be a citizen of Pakistan, and therefore, cannot be elected or chosen as a Member of Parliament or hold such Office in view of the Article 63(1)(c) of the Constitution in as much as it states "ceases to be citizen". In fact, he is not qualified in terms of Article 62(1)(a) of the Constitution. If the contentions of the learned counsel are to be accepted with regard to a person, would come within the mischief of Article 63(1)(c) of the Constitution, only if he loses his Pakistani citizenship on account of acquiring citizenship/nationality of another State than the latter portion of the Article would become redundant and the intention of the framers of the Constitution would be frustrated rather than actualized.

24. The upshot of the above is that it was clear intention of the framers of the Constitution that the word 'or' has been used disjunctively in order to cater for a separate distinct situation, where a Pakistani citizen acquires a dual nationality of a foreign State as mentioned or notified under Section 14(3) of the Act of 1951, without loss of his Pakistani citizenship in terms of Section 14(1) of the said Act. An interpretation to the contrary would render the phrase "acquires the citizenship of a foreign State" under Article 63 (1) (c) of the Constitution redundant, which intention can never be attributed to the framers of the Constitution, as is the settled law, in this behalf. Reference, in this behalf, may be made to the judgments of this Court reported as Malik Shakeel Awan v. Sheikh Rasheed Ahmed and 21 others (PLD 2018 SC 643), Justice Shaukat Aziz Siddiqui and others v. Federation of Pakistan through Secretary Law and Justice, Islamabad and others (PLD 2018 SC 538), Sami Ullah Baloch and others v. Abdul Karim Nousherwani and others (PLD 2018 SC 405), Muhammad Hanif Abbasi v. Imran Khan Niazi and others (PLD 2018 SC 189), District Bar Association, Rawalpindi v. Federation of Pakistan (PLD 2015 SC 401), Application by Abdul Rehman Farooq Pirzada (PLD 2013 SC 829), Chief Justice of Pakistan Iftikhar Muhammad Chaudhry v. President of Pakistan through Secretary and others (PLD

2010 SC 61) and Shahid Nabi Malik and another v. Chief Election Commissioner, Islamabad and 7 others (PLD 1997 SC 32).

25. Thus, the conclusion drawn by this Court in the case reported as Syed Mehmood Akhtar Naqvi v. Federation of Pakistan through Secretary Law and others (PLD 2012 SC 1089), that the word 'or' used in Article 63(1)(c) of the Constitution, is disjunctive and that a person holding a dual nationality of a foreign State though legally in view of Section 14(3) of the Act of 1951, nevertheless will not be entitled to be elected or chosen as, or hold the Office of a Member of Parliament, is correct interpretation of the Constitution and does not merit any reconsideration. Incidentally, the aforesaid view has been reiterated by this Court in its judgments reported as Dr. Muhammad Tahir-ul-Qadri v. Federation of Pakistan through Secretary, Ministry of Law, Islamabad and others (PLD 2013 SC 413) and Sadiq Ali Memon v. Returning Officer, NA-237, Thatta-I and others (2013 SCMR 1246).

26. The contentions of Mr. Bilal Hassan Minto, learned ASC, amicus curiae, must necessarily be examined in the context that the word 'or' as used in Article 63(1)(c) of the Constitution, has been employed disjunctively with the effect that lack of qualification(s) under the said provision caters for two separate legal situations. Firstly, where a person who once being a citizen of Pakistan ceases to be a citizen of Pakistan (say under Section 14 of the Act of 1951), or secondly acquires the citizenship of a foreign State [as is permissible under Section 14(3) of the Act of 1951]. The later disqualification i.e. acquiring citizenship of a foreign State needs to be interpreted on stand alone basis as a separate category of disqualification. In the above context, Mr. Bilal Hassan Minto, learned ASC, amicus curiae, perhaps, correctly canvassed that such a disqualification is triggered by acquiring of the citizenship of a foreign State. We noticed that the term "acquire" has not been defined in the Constitution. Thus, we must search for its ordinary dictionary meanings. In "Words and Phrases, Permanent Edition, West Publishing Co. Volume 1A, at page 556-557", the words "acquire" and "acquired" have been defined as under:

"ACQUIRE; ACQUIRED

In General: To "acquire" means to gain, usually by one's own exertion; to get, as one's own, as to acquire a title, riches, knowledge, skill, good or bad habits. U.S. v. Hibernia Bank Bldg., D.C.La., 76 F. Supp. 18, 19."

In Black's Law Dictionary, Fifth Edition by the Publisher's Editorial Staff, at page 23, stated as under:

"To gain by any means, usually by one's own exertions; to get as one's own; to obtain by search, endeavour, investment, practice, or purchase; receive or gain in whatever manner; come to have. In law of contracts and of descents, to become owner of property; to make property one's own."

In Legal Terms and Phrases, Judicially defined from 1947 - 2012, by M. Ilyas Khan, 2013 Edition at page 38, the word "Acquire", has been defined, while referring the judgment rendered by Mr. Justice Shabbir Ahmed, Judge, Lahore High Court, in the judgment reported as M.Asalam v. Umar Bibi (PLD 1960 Lahore 312) in the following words:

"Acquire. - "To obtain or gain usually by one's own efforts."

The phrase "acquires the citizenship of a foreign State" when examined in the context of the aforesaid definitions of the word "acquire", leads to an irresistible conclusion that a person is not qualified, if he, obtains or gains the citizenship of a foreign State. The lack of qualification is the consequence of gaining, obtaining or acquiring a legal status i.e. citizenship of a foreign State. As long as such legal status i.e. citizenship of a foreign State holds the field the disability resulting therefrom i.e. lack of qualification to be elected or chosen or being a Member of Parliament would also exist. If such disabling legal status disappears so too will the disability. This is the only conclusion which can be drawn from a plain reading of the aforesaid provision.

In this view of the matter, where a citizen of Pakistan acquires the citizenship of a foreign State, he shall not be qualified to be elected or chosen or being a Member of Parliament until and unless such legal status i.e. being a citizen of a foreign State is obliterated or extinguished. This is only possible when the citizenship of the foreign State is renounced or relinquished and such process of relinquishment or renouncement is completed and concluded. Mere initiation of the process of relinquishment is not sufficient as during the course of such process, the dual national does not cease to be a citizen of a foreign State and the disqualification exists. This view has already been taken by this Court in the judgments reported as Syed Mehmood Akhtar Naqvi v. Federation of Pakistan through Secretary Law and others (PLD 2012 SC 1054), Dr. Ahmed Ali Shah and others v. Syed Mehmood Akhtar Naqvi and others (2018 SCMR 1276), Zahid Iqbal v. Hafiz Muhammad Adnan and others (2016 SCMR 430) and Sadiq Ali Memon v. Returning Officer, NA-237, Thatta-I and others (2013 SCMR 1246), we have not been persuaded to take a different view in the matter.

27. Adverting now to the matter of the newly elected Senators at hand. With reference to Ch. Muhammad Sarwar, no doubt, he was once the citizen of United Kingdom and thereafter, he has purportedly relinquished/ renounced such citizenship well before the Senate elections in question. In support of his contentions, he filed a copy of "Declaration of Renunciation of British Citizenship, British Overseas Citizenship, British Overseas Territories Citizenship, British National (Overseas) or British Subject Status" dated 02.07.2013, along with a letter from the Home Office, UK Border Agency, dated 18.07.2013, which confirmed the renunciation of his British Citizenship (available at pages 5 and 6 of C.M.A. No.8575 of 2018). A Certificate dated

09.03.2018 from the British High Commission, Islamabad, confirming that he had renounced his citizenship in July, 2013, has also been filed on his behalf.

28. The aforesaid documents, ex facie, established that Ch. Muhammad Sarwar, did not hold dual nationality when he contested the elections to the Senate. However, the said documents need to be authenticated and verified.

29. On behalf of Ms. Nuzhat Sadiq, it has been submitted that she was a citizen of United States of America and renounced her nationality in the year 2012. In support of her contentions, she filed a copy of Certificate of Loss of Nationality of the United States dated 09.02.2012, which was approved by the Overseas Citizens Services Department of State on 23.03.2012. The aforesaid documents, ex facie, established that Ms. Nuzhat Sadiq, was not a dual national when she contested the elections to the Senate. However, the said documents need to be verified.

30. With regard to Mr. Haroon Akhtar Khan, as noted above, he admittedly is a Canadian citizen, having acquired Canadian citizenship in the year 1980, as mentioned in his Affidavit and the process for renunciation of such citizenship has been initiated by him. However, it was candidly conceded by his learned counsel that such process has not been completed, hence, Mr. Haroon Akhtar Khan, continues to be a Canadian citizen. In this view of the matter, Mr. Haroon Akhtar Khan, in view of Article 63 (1) (c) of the Constitution was not qualified to be elected or chosen as a Member of Senate or to hold the Office of Senate, under the Constitution.

31. Adverting now to the matter of Ms. Saadia Abbasi, it is an admitted fact that she had a dual nationality of United States of America. It is her case that she had renounced and surrendered such nationality. In support of her contention, she has filed a copy of the Statement of Understanding Concerning the Consequences and Ramifications of Renunciation or Relinquishment of U.S. Nationality, attested on 08.02.2018, in the Consul of the United States of America; a copy of the Certificate of Loss of Nationality of the United States dated 13.02.2018, approved on 20.02.2018; and also a copy of Oath/Affirmation of Renunciation of Nationality of United States dated 08.02.2018.

32. That by way of the Elections Act, 2017, inter alia, the Representation of the People Act, 1976, as well as the Senate (Election) Act, 1975, have been repealed, consolidated and re-enacted.

In Halsbury's Laws of England (Second Edition), Volume 31 at page 565, para 771, it is observed as under:

"771. ... Where a consolidating statute re-enacts sections that have come into existence at different previous dates, the statute must be construed on the same principles as one which enacts the provisions in question for the first time. ..."

Thus, provisions of the Elections Act, 2017, must necessarily be construed as they were previously interpreted.

Sections 107, 110, 112 and 156(1)(b) of the Elections Act, 2017, in fact, are re-enactment of Sections 10, 11, 13 and 49(1)(b) of the Senate (Election) Act, 1975, and legally identical to Sections 11, 12, 14 and 68(1)(b) of the Representation of the People Act, 1976. The latter provisions have been interpreted by this Court by holding that a person must be qualified and not disqualified on the last date of filing of the Nomination Papers.

This Court, in the case reported as Waqas Akram v. Dr. Muhammad Tahirul Qadri and others (2003 SCMR 145), held as follows:

"6. ... the qualifying age has to be determined on the last date for filing of nomination papers, notified by the Election Commission of Pakistan. In other words the cut-off date is the last date for filing of nomination papers."

And in the case reported as Atique Rehman v. Haji Khan Afzal and others (2007 SCMR 507), it was held that:

"... so long the decree of the Civil Court determining the age of appellant above 25 years on the date of filing of nomination papers was intact, the objection that he was less than 25 years of age on the date of filing of nomination papers could not be raised to contend that he was suffering from disqualification to contest the election. ..."

And in the case reported as Zahid Iqbal v. Hafiz Muhammad Adnan and others (2016 SCMR 430), it was observed as under:

"11. ... Disqualification on account of dual citizenship ... is not attracted in instant case as on the date of nomination papers, the petitioner was admittedly not holding any dual citizenship. ..."

Even otherwise, a plain reading of Sections 107, 110, 112 and 156(1) (b) of the Elections Act, 2017, would reveal that the accumulated effect is that the critical date for being qualified or not being qualified to be a Member of Parliament is the date when the Nomination Papers are filed.

33. The elections of the Senate were held under Chapter VII of the Elections Act, 2017, and as per Notification dated 02.02.2018, the schedule of Senate elections was issued by the ECP, with regard to Senate elections from the Provincial Assembly, Punjab, and in terms whereof, notice for invitation of Nomination Papers was issued on 03.02.2018. The last date for filing of the Nomination Papers was 08.02.2018 and the date of scrutiny was fixed as 12.02.2018. The appeals, if any, filed were required to be disposed of as on 17.02.2018. The last date of withdrawal was 19.02.2018.

34. Obviously, Ms. Saadia Abbasi, filed her Nomination Papers by or before 08.02.2018 and on that date, even as per her own case, at that point of time, she was a dual national and the alleged relinquishment still under process, leaving no room for doubt that on such dates, at such point of time, even as per her own case, the renunciation of dual citizenship had not been approved. Hence, she was not qualified to be elected or chosen as a Member of Senate and

her Nomination Papers were invalid, liable to be rejected and any election thereupon void. The subsequent approval of her renunciation even with retrospective effect could not cure the defect of not being qualified in terms of Section 103 of the Elections Act, 2017, which existed at that point of time, when she filed her Nomination Papers, on the last date of Nomination Papers and when her Nomination Papers were scrutinized. In this view of matter, her election to the Senate is vitiated and liable to be annulled, as she was not qualified at the relevant point of time.”

Reliance to this effect can also be placed on SHER BAZ KHAN GAADHI v. MUHAMMAD RAMZAN and others (2018 SCMR 1952).

9. Admittedly the appellant is holding dual nationality and process for renunciation of such citizenship has not been initiated by him. In this view of the matter, the appellant, in view of Article 63 (1) (c) of the “Constitution” was not qualified to be elected or chosen as a Member of Majlis-e-Shoora (Parliament).

10. In view of above discussion this appeal fails and is **dismissed**.

(MIRZA VIQAS RAUF)
JUDGE
APPELLATE TRIBUNAL

APPROVED FOR REPORTING

JUDGE
APPELLATE TRIBUNAL